

FEHA prohibits an “employer ... or any other person, because of physical disability... [or] age, ... to harass an employee [or] an applicant.” (Gov. Code §12940(j)(1).) Harassing conduct includes ““epithets, derogatory comments or slurs on a basis enumerated in”” FEHA. (*Bailey v. San Francisco District Attorney’s Office* (2024) 16 Cal.5th 611, 626.)

To establish a prima facie case of unlawful harassment under Fair Employment and Housing Act (FEHA), a plaintiff must show (1) she was a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on the plaintiff’s membership in an enumerated class; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) the defendant is liable for the harassment. (*Martin v. Board of Trustees of California State University* (2023) 97 Cal.App.5th 149; Gov. Code §12940(j)(1).)

The Complaint alleges that Sulangi assigned her to work that violated her work restrictions and when she complained he said he didn’t care, and that she was not special. These facts do not rise to the level of harassment against Sulangi. Accordingly, the court sustains the demurrer to the 4th cause of action with leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM VS MADRIGAL	DEMURRER ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF TOM

Tentative Ruling: SUSTAIN the demurrer entirely, with 30 days leave to amend.

On 10/3/2025, Tanya Tom and Sidney Ke (“Plaintiffs”) filed a complaint against Lisa Madrigal (“Madrigal”), Adam Sussley-House (“Sussley”), FIV Realty Co (“FIV”), and Mancee Elizabeth Reimbold (“Reimbold”). The complaint asserts the following causes of action: (1)

breach of contract; (2) fraud; (3) latent defect; (4) negligent infliction of emotional distress (“NIED”); (5) intentional infliction of emotional distress (“IIED”); (6) demand for arbitration.

Generally, the complaint concerns Plaintiffs’ 4/19/2025 purchase of real property, located at 30204 Harvest Lane, Murrieta, CA, 02562 (the “Property”) from Reimbold. (Complaint, ¶ 13.) Madrigal represented Reimbold as her real estate agent, under the broker license of Sussley “and/or” FIV. (*Id.* at ¶ 14.) Plaintiffs allege all defendants played a role in concealing extensive damage from pet urine that was so extensive, it called black mold throughout the walls and flooring. (*Id.* at ¶ 21.)

Now, Sussley demurs to the entire complaint on the grounds that each cause of action fails to state facts sufficiently. The original hearing date was 4/30/2026.

On 4/29/2026, Plaintiffs’ counsel filed a “Declaration in Response to Demurrer; and Request for Leave to Amend Complaint.” Therein, Mr. Graff requests 30 days to amend the complaint to address the issues raised in Sussley’s demurrer.

On 4/30/2026, the court continued the hearing and ordered Sussley to conduct a proper meet and confer effort.

On 7/9/2026, Sussley’s counsel filed a declaration outlining the additional meet and confer efforts. The declaration states that on 6/4/2026, Mr. Graff again represented he would amend the complaint. (7/9/2026 Declaration of Saul Lopez, ¶ 10.) Plaintiffs have not filed an amended complaint, and Mr. Lopez has been unable to get in contact with Mr. Graff since the 6/4/2026 phone call, despite repeated attempts.

“A cause of action for breach of contract requires pleading of a contract, plaintiff’s performance or excuse for failure to perform, defendant’s breach and damage to plaintiff resulting therefrom.” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1031.) “If [an] action is based on alleged breach of a written contract, the terms must be set out

verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.) The plaintiff may also plead the legal effect of the contract. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.) “In order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant legal terms.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489)

As to Sussley, there are no allegations regarding any contract between Sussley and Plaintiffs or how Sussley is bound by the contract alleged to have been entered between Plaintiff and Reimbold. In fact, the only allegation specific to Sussley is that either Sussley “and/or” FIV served as the broker under which Madrigal operated as a real estate agent. (Complaint, ¶ 14.) The “facts” to be pleaded are those upon which liability depends—i.e., “the facts constituting the cause of action.” These are commonly referred to as “ultimate facts.” (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Overall, there are insufficient ultimate facts as to Sussley and his involvement in the allegations to survive the challenge to this cause of action.

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal. App. 4th 151, 157-158.) Every element of the cause of action must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

There are no allegations specific to Sussley to properly allege a cause of action for fraud. The court should SUSTAIN the demurrer to the second cause of action.

There appears to be no independent cause of action for “Latent Defect.” The complaint fails to identify any grounds for said cause of action and largely restates the allegations from the breach of contract and fraud causes of action.

To recover for IIED, the conduct at issue must be outrageous. (*Cervantez v. J.C. Penney Co.* (1979) 24 Cal.3d 579, 593.) Defendants also must have intended to cause or acted with reckless disregard of the possibility of causing severe or extreme emotional distress, and plaintiff must have suffered this distress. There must also be a causal nexus. (*Fletcher v. Western National Life Ins.* (1970) 10 Cal.App.3d 376, 394.) Outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.) This cause of action must be pleaded with specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.) This requires that the pleading allege “facts demonstrating the nature, extent or duration of [plaintiff’s] alleged emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Negligent infliction of emotional distress (“NIED”) is a form of negligence, which includes the elements of duty, breach, causation and damages. (*Huggins v. Longs Drug Store* (1993) 6 Cal.4th 124, 129.) There are two theories of NIED recovery: the “bystander” theory and the “direct victim” theory. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1071.)

There are no allegations identifying any conduct specific to Sussley, let alone conduct that could be outrageous. As for the NIED claim, while the pleading requirement is lower than fraud

or IIED, there are simply no facts alleged as to Sussley other than the belief that either he or FIV served as the broker for Madrigal. (Complaint, ¶ 14.)

Plaintiffs' sixth cause of action is a demand for arbitration pursuant to the "operative escrow contract." (Complaint, ¶ 60.) CCP § 1281.2 allows a party to bring a "petition" to compel arbitration pursuant to a written agreement. While technically incorrect stylized as a "cause of action", I cannot find any authority that prevents a petition to compel arbitration from being brought along with a substantive complaint.

Upon the petition of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

As currently plead, the complaint fails to meet any of the above stated requirements as to Sussley, or any of the other defendants for that matter. The court should thus SUSTAIN the demurrer to the sixth cause of action, with 30 days leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM VS MADRIGAL	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF TOM

Tentative Ruling: See Tentative on Demurrer